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**THE DONALD D. GIANNINI REVOCABLE LIVING TRUST OF 2016, AS
AMENDED AND RESTATED
PR25-00803**

Petition for: (1) Order for Accounting; (2) Order for Suspension, Removal and Replacement of Trustee; (3) Order to Quiet Title and to Recover Estate Assets; (4) Undue Influence – Invalidation of Purported Estate Planning Documents and Damages; (5) Fraud – Rescission and Damages; (6) Order Voiding Purported Estate Planning Instruments Under Probate Code Section 21380, *et seq.*; (7) Order for Damages and Attorney's Fees Under Welfare & Institutions Code Section 15610.30 and Probate Code Section 859; (8) Unjust Enrichment/Restitution; (9) Damages – Intentional Interference with Expected Inheritance; (10) Constructive Trust/Blocked Account; (11) Order that Respondent Be Deemed to Have Predeceased Settlor Under Probate Code Section 259; and (12) Order Preventing Respondent from Using Trust Assets to Defend this Action (Prob. Code §§ 259, 850-859, 15642, 17200, 21380; W&I Code § 15610 et seq.)

Respondent/Trustee's Objection to Petition for: (1) Order for Accounting; (2) Order for Suspension; (3) Order to Quiet Title and To Recover Estate Assets; (4) Undue Influence — Invalidation of Purported Estate Planning Instruments and Damages; (5) Fraud — Rescission and Damages; (6) Order Voiding Purported Estate Planning Instruments Under Probate Code Section 21380, et seq.; (7) Order for Damages and Attorney Fees under Welfare & Institutions Code Section 15610.30 and Probate Code Section 859; (8) Unjust Enrichment/Restitution; (9) Damages — Intentional Interference with Expected Inheritance; (10) Constructive Trust/Blocked Account; (11) Respondent Be Deemed to Have Predeceased Settlor Under Probate Code Section 259; and (12) Order Preventing Respondent from Using Trust Assets to Defendant This Action

Reply to Respondent/Trustee's Objection to Petition for: (1) Order for Accounting; (2) Order for Suspension; (3) Order to Quiet Title and Recover Estate Assets; (4) Undue Influence — Invalidation of Purported Estate Planning Instruments and Damages; (5) Fraud — Rescission and Damages; (6) Order Voiding Purported Estate Planning Instruments Under Probate Code Section 21380, et seq.; (7) Order for Damages and Attorney Fees Under Welfare and Institutions Code Section 15610.30 and Probate Code Section 859; (8) Unjust Enrichment/Restitution; (9) Damages — Intentional Interference with Expected Inheritance; (10) Constructive Trust/Blocked Account; (11) Respondent Be Deemed to Have Predeceased Settlor Under Probate Code Section 259; and (12) Order Preventing Respondent from Using Trust Assets to Defend this Action

PREGRANT ORDER

This matter was continued from February 9, 2026 and April 1, 2026 to allow the petitioner to address the issue with service of the petition. The court has reviewed the Proof of Service filed April 7, 2026 which resolved the outstanding issue with the petition.

Counsel and parties may appear via Zoom, in person, or by CourtCall and address the following:

Possibility of mediation; timeline for discovery; and timeline for trial.

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IN RE THE ESTATE OF DONALD L. FOSTER, DECEASED
PR26-00044

Amended Petition for Letters of Administration and Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

This matter was continued from March 18, 2026 to allow the petitioner to address issues with the petition. The court has reviewed the documents filed April 3, 2026 which resolved the outstanding issues.

The court finds all notices have been given as required by law. The amended petition is granted as prayed.

The court appoints Kenneth Aaron Foster as administrator with full authority under the Independent Administration of Estates Act.

Bond is waived.

The court appoints Paul Miller as probate referee.

The personal representative shall file their Inventory and Appraisal within four months of the date letters are issued. **A compliance hearing regarding the filing of the Inventory and Appraisal is set for October 19, 2026 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

The personal representative shall file either their petition for final distribution or their first status report within 12 months of the date letters are issued. **A compliance hearing regarding the filing and service of the petition or status report is set for July 19, 2027 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend